

This matter is scheduled for hearing on **May 7, 2026, at 9:00 am** in this department.

6. 9:00 AM CASE NUMBER: C24-01703
CASE NAME: BLACK DIAMOND PAVER STONES AND LANDSCAPES, INC. VS. HIRSCH CLOSSON
***HEARING ON MOTION IN RE: ATTORNEY FEES AND COSTS ON APPEAL**
FILED BY: HIRSCH CLOSSON
TENTATIVE RULING:

Defendant Hirsch Closson seeks attorneys' fees and costs for work done on appeal in this matter. Plaintiff Black Diamond Paver Stones and Landscapes, Inc, opposes this request, arguing that the amount sought is unreasonably high. Hirsch Closson also seeks costs on the original case, noting that Black Diamond has not sought to tax those costs.

Background

In response to Plaintiff's complaint, Defendant filed a Special Motion to Strike Pursuant to Code of Civil Procedure Section 425.16 (anti-SLAPP). Defendant Prevailed on that motion and the Court dismissed the matter. Defendant sought attorneys' fees. Plaintiff did not oppose those fees. Plaintiff did, however, appeal the anti-SLAPP dismissal. The Court of Appeal affirmed this court's decision. Defendant now seeks fees and costs for the appeal.

Analysis

Code of Civil Procedure section 425.16 provides: "(c)(1) Except as provided in paragraph (2), in any action subject to subdivision (b), a prevailing defendant on a special motion to strike shall be entitled to recover that defendant's attorney's fees and costs." This provision additionally provides for attorneys' fees for a defendant successfully defending on appeal the trial court's grant of an anti-SLAPP motion. (See, e.g., *Evans v. Unkow* (1995) 38 Cal.App.4th 1490.) The question before the Court today is whether the fees and costs requested by Hirsch Closson are "reasonable."

It is acknowledged that, while Hirsch Closson sought approximately \$28,000 in fees and costs at the trial court stage, it now seeks approximately \$44,000 (after the reply brief) for the costs on appeal and through this motion. The amount sought for successfully defending on appeal and then seeking costs is therefore approximately 1.5 times the amount sought for the motion itself. Black Diamond avers that this amount is unreasonable because the appeal was "straightforward." Black Diamond ignores, however, that appeals necessarily involve additional work in preparing, reviewing, and presenting the record, and in confirming and expanding legal research. Additionally, Hirsch Closson explains that issues not fully raised at the trial court level were subject to increased or new attention at the appellate level. Upon review of Hirsch Closson's request, the amounts sought appear reasonable to the Court.

Ruling

Hirsch Closson's motion (and memorandum of costs) are therefore **granted**. The Court awards \$76,203 in attorneys' fees and interest and \$2,106.33 in costs and interest for a total of \$78,309.33.

7. 9:00 AM CASE NUMBER: C24-02109
CASE NAME: KATHLEEN CABALLERO VS. FREEDOM FOREVER, LLC
*HEARING ON MOTION IN RE: JUDGEMENT ON THE PLEADINGS
FILED BY:
TENTATIVE RULING:

Before the Court is a motion for judgment on the pleadings ("Motion") filed by defendant Freedom Forever, LLC ("Defendant"). The Motion argues that the second cause of action (financial elder abuse), third cause of action (negligent misrepresentation), fourth cause of action (negligence), and fifth cause of action (Business and Professions Code, §17200, et seq.), fail to state facts sufficient to constitute causes of action.

For the reasons discussed below, the Court's tentative ruling is to **GRANT** Defendant's motion for judgment on the pleadings as to the second cause of action for financial elder abuse, the third cause of action for negligent misrepresentation, and the fifth cause of action for violation of Business & Professions Code section 17200 et seq., with leave to amend. Plaintiffs may file and serve an amended complaint within 30 days of notice of entry of this order. (Code of Civ. Proc., § 438, subd. (h)(2).)

Meet and Confer

The meet and confer requirement has been satisfied. (Stephen A. Horner Decl., ¶¶ 2-7; CCP, § 439, subd. (a)(3)(A).)

Legal Standard for Motion for Judgment on the Pleadings

Code of Civil Procedure section 438 permits a defendant to move for judgment on the pleadings on the ground that the complaint does not state facts sufficient to constitute a cause of action against the defendant. (Code Civ. Proc., §§ 438, subd. (b)(1), 438, subd. (c)(1)(B)(ii), and 438, subd. (c)(2)(A); *Stoops v. Abbassi* (2002) 100 Cal.App.4th 644, 650 ["Such motion may be made on the same ground as those supporting a general demurrer, i.e., that the pleading at issue fails to state facts sufficient to constitute a legally cognizable claim or defense. [Citation omitted.]".]) (*See also Connerly v. Schwarzenegger* (2007) 146 Cal.App.4th 739, 746 ["A motion for judgment on the pleadings is the equivalent of a demurrer made after the pleadings are in." [Citation omitted.]".]) A motion for judgment on the pleading may also be made to the complaint in its entirety. (Code Civ. Proc., § 438, subd. (c)(2)(A).)

The legal standards for determination of a motion for judgment on the pleadings are similar to the standards for determination of a demurrer. (*Eckler v. Neutrogena Corp.* (2015) 238 Cal.App.4th 433, 439.) The basis for judgment on the pleadings "shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice." (Code Civ. Proc. § 438, subd. (d).) As in the case of a demurrer, the Court accepts all factual allegations of the complaint and "gives them a liberal construction." (*Gerawan Farming, Inc. v. Lyon* (2000) 24 Cal.4th 468, 515-516.)

Consistent with the rules for determination of a demurrer, a motion for judgment on the pleadings must fully dispose of the challenged cause of action. (*Daniels v. Select Portfolio Servicing, Inc.* (2016) 246 Cal.App.4th 1150, 1167, overruled in part on other grounds by *Sheen v. Wells Fargo Bank, N.A.*

(2022) 12 Cal.5th 905, 919; *PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1682-1683.) Further, “If the motion for judgment on the pleadings is granted, leave to amend must be granted unless the defect cannot be cured by amendment.” (*Hudson v. County of Los Angeles* (2014) 232 Cal.App.4th 392, 408.)

Background: Facts Alleged in Complaint

On August 8, 2024, plaintiffs Kathleen Caballero and Kathleen Vega (“Plaintiffs”) filed the complaint (“Complaint”) in this matter. The Complaint alleges claims against defendant Freedom Forever, LLC for breach of contract, financial elder abuse, negligent misrepresentation, negligence, and violation of Business and Professions Code section 17200, et seq.

On April 28, 2021, Plaintiff Vega entered into an agreement (“Contract”) with Defendant for the installation of a solar system on Plaintiffs’ real property, located at 4902 Chardonnay Court, Oakley, CA 94561. (Complaint, ¶ 9.) The Contract stated that the work would be completed within 60 days from commencement of the work, which would begin after all permits are obtained and the property is ready for installation. (*Id.*, at ¶ 11, Exh. A.) Work began around April 30, 2021. (*Id.*, at ¶ 12.) Defendant was to install the system on the roof, in addition to the preexisting solar panels that Plaintiffs already had. (*Ibid.*) The work included the installation of a 125-amp main panel breaker to run the system, which Defendant recommended. (*Ibid.*)

Around May 1, 2021, PG&E performed an inspection pursuant to the Contract and informed Plaintiffs that the new solar system from Defendants could not be connected because an improper electrical panel had been installed. (Complaint, ¶ 13.) Further, the preexisting solar system had been disconnected by Defendant. (*Id.*, at ¶ 14.) In June of 2021, Defendant told Plaintiffs that work was being held up because the city had not yet approved the necessary permit. (*Id.*, at ¶ 16.) In October 2021, the city informed Plaintiffs that Defendant had requested a permit but that no permit was approved. (*Id.*, at ¶ 19.) By late January/early February 2023, Defendant had installed the correct amp breaker, received the necessary permits, and the solar system was correctly installed and functioning. (*Id.*, at ¶ 20.)

Discussion

Second Cause of Action for Financial Elder Abuse

Defendant argues that this claim fails because Plaintiffs have not alleged facts constituting a “taking” under California’s financial elder abuse statute. (Motion for Judgment on the Pleadings [“Motion”], pp. 8-10.) Plaintiffs assert that Plaintiff Caballero was deprived of her existing solar panel benefits for extended periods during the delays in installation of the new panels, due to Defendant’s technician disconnecting the previously existing solar system. (Opposition, p. 5.) On reply, Defendant argues that Plaintiffs have not pled facts for this in their complaint. (Reply, p. 3.) Defendant also argues that even with a deprivation of property sufficient to be a taking, etc., that this must still be for a wrongful use, with an intent to defraud, or by undue influence. (*Id.*, at pp. 2-3.)

The elements of a claim for financial elder abuse are as follows:

(a) 'Financial elder abuse of an elder or dependent adult occurs when a person or entity does any of the following:

(1) Takes, secretes, appropriates, obtains, or retains real or personal property of an elder or dependent adult for a wrongful use or with intent to defraud, or both.

(2) Assists in taking, secreting, appropriating, obtaining, or retaining real or personal property of an elder or dependent adult for a wrongful use or with intent to defraud, or both.

(3) Takes, secretes, appropriates, obtains, or retains, or assists in taking, secreting, appropriating, obtaining, or retaining, real or personal property of an elder or dependent adult by undue influence, as defined in Section 1575 of the Civil Code.

(Welf. & Inst. Code, § 15610.30, subd. (a).) “A person or entity shall be deemed to have taken, secreted, appropriated, obtained, or retained property for a wrongful use if, among other things, the person or entity takes, secretes, appropriates, obtains, or retains the property and the person or entity knew or should have known that this conduct is likely to be harmful to the elder or dependent adult.” (Welf. & Inst. Code § 15610.30, subd. (b).) Further, “a person or entity takes, secretes, appropriates, obtains, or retains real or personal property when an elder or dependent adult is deprived of any property right. . .” (*Id.*, at subd. (c).)

The Court finds that Plaintiffs have not alleged with sufficient particularity how Defendant deprived Plaintiff Caballero of her property rights as to her existing solar panels (1) for a wrongful use, (2) with an intent to defraud, or (3) by undue influence. (Complaint, ¶¶ 1-41; *Covenant Care, Inc. v. Super. Ct.* (2004) 32 Cal.4th 771, 790 (California Supreme Court describing the “general rule that statutory causes of action must be pleaded with particularity”].) The Contract was entered into on April 28, 2026, and work began on April 30, 2021. (Complaint, ¶¶ 9, 12.) PG&E inspected the property on May 1, 2021, and informed Plaintiffs that Defendant did not install the correct electrical panel and that the previously installed solar panels were disconnected by Defendant’s technicians. (*Id.*, at ¶ 14.) The lack of particularity relates to the fact that Plaintiffs do not allege what conduct of Defendant shows that Defendant, at the time of disconnecting the preexisting solar panels prior to May 1, 2021, did so for a wrongful use, or with an intent to defraud, or by undue influence. (Complaint, ¶¶ 1-41.)

The Court grants Defendant’s motion for judgment on the pleadings as to Plaintiffs’ second cause of action for financial elder abuse, with leave to amend.

Third Cause of Action for Negligent Misrepresentation

“[U]nder the economic loss rule, tort recovery for breach of a contract duty is generally barred . . . unless two conditions are satisfied. A plaintiff must first demonstrate the defendant’s injury-causing conduct violated a duty that is independent of the duties and rights assumed by the parties when they entered the contract. Second, the defendant’s conduct must have caused injury to persons or property that was not reasonably contemplated by the parties when the contract was formed.”

(*Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 20-21.)

Defendant argues that Plaintiffs' claim for negligent misrepresentation fails because it is barred by the economic loss rule due to their allegations not going beyond contract duties. (Motion, pp. 11-12.) Plaintiffs disagree and argue that "Plaintiff has alleged that, during the negotiations leading up to the Contract, Defendant FF made positive assertions that Plaintiff's existing solar panel system and electrical components were sufficient to equip FF's solar panel addition, and that FF was equipped and competent enough to handle this job because FF has done solar panel additions just like this to work cohesively with Plaintiffs' existing solar panel system without issue." (Opposition, p. 6.) On reply, Defendant argues that Plaintiffs have not alleged such independent misrepresentations. (Reply, p. 6.)

The Court agrees with Defendant that the Complaint does not support Plaintiffs' assertion that they "alleged that, during the negotiations leading up to the Contract, Defendant FF made positive assertions that Plaintiff's existing solar panel system and electrical components were sufficient to equip FF's solar panel addition, and that FF was equipped and competent enough to handle this job because FF has done solar panel additions just like this to work cohesively with Plaintiffs' existing solar panel system without issue." (Opposition, p. 6.) The Complaint contains few allegations about the representations Defendant made prior to entering into the Contract. At paragraph 44 of the Complaint, Plaintiffs allege that "Defendant made certain representations and assurances to Plaintiffs regarding its ability to reasonab[ly] execute the Contract, quality of workmanship involved, and avoid or at least mitigate hazards it may create." These allegations come close to what Plaintiffs' opposition asserts they alleged in their Complaint, but if Plaintiffs intended to allege that Defendant represented that Plaintiffs' existing solar panel system and electrical components were sufficient to equip their solar panel additions, this is not properly communicated by the allegation at paragraph 44 of the Complaint. Additionally, the Court notes that Plaintiffs' negligent misrepresentation allegations lack the specificity typically required for negligent misrepresentation claims. (*Small v. Fritz Companies, Inc.* (2003) 30 Cal.4th 167, 184.)

The Court grants Defendant's motion for judgment on the pleadings as to the third cause of action, for negligent misrepresentation, with leave to amend.

Fourth Cause of Action for Negligence

Plaintiffs dismissed their fourth cause of action for negligence on February 24, 2026, and Defendant's demurrer to this claim is now moot.

Fifth Cause of Action for Violation of Business & Professions Code section 17200 et seq.

Defendant argues that Plaintiffs have failed to plead their UCL claim with the required particularity. (Motion, p. 12.) Plaintiffs assert that they have properly pled this claim because they alleged that Defendant asserted unconscionable extension and force majeure exculpatory provisions in its adhesion contracts, forced all customers to agree to its adhesion contracts, systematically misinformed consumers that its own failures are caused by the municipality or the utility company, mischaracterize change orders, revisions, and corrections as homeowner requests, and maintaining that it could not be liable for its nonperformance because of its exculpatory limitation of liability

clauses. (Opposition, pp. 7:22-8:8.) On reply, Defendant argues that “these allegations are entirely conclusory and not based on allegations in the Complaint. Plaintiffs do not identify which specific contract provisions are unconscionable, why they are unconscionable, or how they affect consumers generally rather than just these Plaintiffs.” (Reply, p. 6:23-28.)

The Court agrees with Defendant that the allegations Plaintiffs assert support this claim (Opposition, pp. 7-8) are not actually pleaded in the Complaint. The allegations pled by Plaintiffs in the complaint are conclusory and not specific. For example, “Freedom Forever has engaged in unfair and unlawful business practices in the State of California.” (Complaint, ¶ 63.) “Freedom Forever’s business acts and practices, have caused substantial harm to California consumers, including Plaintiffs and members of the public by enforcing deceptive business acts and practices in companies engaged in contracting work on residential properties that will likely cause consumers to lose protection and the opportunity to fair competition in commercial markets for related goods and services.” (*Id.*, at ¶ 59.) Plaintiffs’ allegations in support of their UCL claim are insufficiently specific and overly conclusory. (*Khoury v. Maly’s of Cal.* (1993) 14 Cal.App.4th 612, 617 [“A plaintiff alleging unfair business practices [under the UCL] must state with reasonable particularity the facts supporting the statutory elements of the violation.”].)

Therefore, the Court grants Defendant’s motion for judgment on the pleadings as to Plaintiff’s fifth cause of action for violation of Business and Professions Code section 17200, et seq., with leave to amend.

Ruling on Motion

The Court **GRANTS** Defendant’s motion for judgment on the pleadings as to the second cause of action for financial elder abuse, the third cause of action for negligent misrepresentation, and the fifth cause of action for violation of Business & Professions Code section 17200 et seq., with leave to amend.

Plaintiffs may file and serve an amended complaint within 30 days of notice of entry of this order. (Code of Civ. Proc., § 438, subd. (h)(2).)

8. 9:00 AM CASE NUMBER: C24-02966

CASE NAME: YUE REN VS. GAUTAM PATIL

***HEARING ON MOTION IN RE:**

FILED BY: REN, YUE

TENTATIVE RULING:

Plaintiff has answered the Cross-Complaint. The **demurrer is now moot.**

9. 9:00 AM CASE NUMBER: C25-00311

CASE NAME: ERNISHA JOHNSON VS. HUNTER CURTIS CAMPBELL

***HEARING ON MOTION IN RE: LEAVE TO FILE 2ND AMENDED COMPLAINT**

FILED BY: BALLARD, TONY

TENTATIVE RULING: